

Court No. - 3

Case :- WRIT - C No. - 40522 of 2023

Petitioner :- Gaurav Sharma @ Khushi Ram Sharma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rajesh K.S. Chaudhary

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

It is the contention of the learned counsel for the petitioner that the recovery certificate was issued without preceding final assessment order.

Sri Anuj Tripathi, learned counsel holding brief of Sri Alok Mishra, learned counsel for the Electricity Department may taken instructions in the matter.

Put up this case as fresh on 8.1.2024.

Till the next date of listing, no recovery to be done against the petitioner, if he deposits a sum of Rs.20,000/- within two weeks from date.

Order Date :- 2.12.2023

Kuldeep

(Shekhar B. Saraf,J.)

(Siddhartha Varma,J.)

Court No. - 21

Case :- WRIT - C No. - 40522 of 2023

Petitioner :- Gaurav Sharma @ Khushi Ram Sharma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rajesh K.S. Chaudhary

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. Counsel for the petitioner is not present. Shri Alok Mishra, counsel for the Electricity Department is in receipt of instructions.
2. List as a fresh case on 18.01.2024.
3. Interim order is extended till the next date of listing provided the petitioner has complied the conditions imposed by order dated 02.12.2023.

Order Date :- 9.1.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Court No. - 21

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Respondent :- State Of U.P. And 4 Others

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Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. The petitioner has challenged the recovery citation dated 28.3.2022, issued by respondent no. 4 against the petitioner, in a case of alleged theft of electricity.
2. The argument is that the recovery citation was not preceded by any proper proceeding for assessment, as provided under Clause 6.8 of the Electricity Supply Code, 2005.
3. Sri Alok Mishra, learned counsel appearing on behalf of the Electricity Department, concedes that the procedure prescribed under the Code was not followed while passing the order of final assessment. He states that respondent no. 4 will issue fresh notice and will also pass a fresh order.
4. Having regard to the aforesaid statement of learned counsel for the Electricity Department, we quash the impugned recovery citation and leave it open to respondent no. 4 to proceed afresh in accordance with law.
5. The petition stands disposed of accordingly.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 18.1.2024

Jaideep/-